

Hi David (and Kal),

Thanks for the contract.

We still have concerns that we keep coming up against. As noted previously, these need to be amended before we can sign.

1.

Liability Cap

2.

1.

We must have our liability capped at our public liability insurance level. At present, we have a contract with uncapped liability...? Our insurance currently stands at £5m PL. We can increase this to £10m if required, but this would need to be reflected in the project prelims (if desired). We would also need a £10m cap on personal injury (in house or third party). Please ensure that both are reflected in the final contract issuance.

[image.png]

1.

Main Contract Terms

2.

1.

We need to see the main contract terms before signing. DGC are deemed to have full knowledge of the main contract terms and regulations that are applicable to the work. We have been told that this is a one-page document. Please could you attach that document to your email response for our review before signing. It states in the contract we have seen it, but we have not.

1. Indemnities (Clauses 2, 4 and 19)
2. We agreed that DGC should only be liable to the extent of its negligence, breach of contract or failure to comply with specification. Please ensure that this is reflected in the final contract issuance.

[image.png]

4. Adoptable roads / CBR / ground conditions

It was agreed that any additional work that is outside of our control can be considered a variation. We note that the roads have been priced as a fully capped road build up. This should be mentioned in the contract and variations allowed for. We note that MSFA has now been added into the contract. That's fine, but any changes from the DOI/MU that are a requirement need to be classed as a variation. DGC are unable to swallow costs for legitimate changes such as (but not limited to):

- an instructed change,
- an additional requirement beyond the agreed scope,
- a conflict between the specification and the other subcontract documents, or *
- a genuine delay or cost impact beyond our reasonable control.

Please ensure that this is reflected in the final contract issuance. [image.png]

5. Termination / set-off

Just to close out termination, we would expect materials and reasonable demobilisation costs to be included and any deductions to be properly evidenced - happy to keep this within the existing clause structure. This has already been agreed upon. Please ensure that this is reflected in the final contract issuance.

[image.png]

6. BOQ scope wording and clarifications

It is essential that our BoQ notes (for each page), and our clarifications page is included in the contract. This forms the basis of our pricing for the work and needs to be included. This was agreed (show below - albeit in white working, not red. Please ensure that this is reflected in the final contract issuance.

[image.png]

We have agreed on the above terms and believe that both parties want to move forward with breaking ground. You have asked us to mobilise (16th March 2026), on the 23rd March 2026, and we have done so - with the expectancy of a contract, reflective of the agreed changes. We are now two weeks along, with no progress in relation to the main scope of work. Delays in contract amendments (that have already been agreed upon), is now having a direct effect on the programme length.

We have kept busy on site with site compound setup (paid from our own pocket - to bring a clean start to the project), but that work has now run dry and is putting us at commercial risk without a contract.

We appreciate the importance of moving forward with the project and are still keen to break ground. However, until these agreed changes have been made to the contract (and it has been signed by both parties) we are unable to move further forward with any work within the scope document, and the programme length is going to increase until we can get this squared away.

The workforce is moving ahead with another project and are available within 24 hours of contract signature.

We need all 6x of the above points addressed and reflected in the contract. We are concerned that we will receive another contract with some minor changes and will be back in this same position again.

Can we now ask that the agreed changes are made to the contract so we're able to sign and get this show on the road.

Thanks,

Harry

[cid:image001.png@01DC270C.C900DCC0]

Andrew Harrison
Director | Drainage & Groundwork Contractors Ltd

[icon] 07624 202220 [http://tel:07624+202220](tel:07624+202220)

[icon] info@DGC.im <http://mailto:info@DGC.im> [icon] [DGC.im Drainage & Groundworks Isle of Man, Site Safety & Excavation](#) [icon] 23 Circular Road, Douglas, IM1 1AF

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From: David Curtis dcurtis@dandara.com

Date: Monday, 30 March 2026 at 08:38

To: Andrew Harrison harry@dgc.im, Kalyan Chudasama kchudasama@dandara.com Cc: Ashur Aziz ash@dgc.im,
Commercials DGC commercials@dgc.im, David Smith david@dgc.im Subject: RE: Dandara Ballasalla Phase 4 - Updated Programme

Hi Harry

Thanks for that, Kal is going to collate these and issue across to you this morning

The CCE sheet is vague so for clarity it was the £150/week cabins we agreed to split 50/50 – with an approx. total contribution from Dandara for ~£900

Thanks
David

From: Andrew Harrison harry@dgc.im
Sent: 29 March 2026 19:26
To: David Curtis dcurtis@dandara.com; Kalyan Chudasama kchudasama@dandara.com Cc: Ashur Aziz ash@dgc.im; Commercials DGC commercials@dgc.im; David Smith david@dgc.im Subject: Re: Dandara Ballasalla Phase 4 - Updated Programme

Hi David,

Please find our updated programme attached to this email for the contract issuance tomorrow.

We have kept the 23rd March start date, as that was the day our plant arrived on site. Changing dates to any later is not reflective of our position on site so I hope this updated programme is ok with you.

- CCE 101221 (Hand Dig Services), was performed on Tuesday 24th (and into Wednesday 25th).
- Compound setup commenced on Wednesday 25th and is ongoing (albeit sporadic while waiting for hardcore + welfare cabins). We will continue this on Monday to bring the compound to completion (CCE 101223).
- The site has now been surveyed by the engineer (last Friday 27th), and we are hopeful to start the reduce level dig + cart on Tuesday 31st (pending contract signatures tomorrow).

I have attached CCE 101223 (50% of site compound + welfare), as agreed in our meeting at head office on Tuesday 24th March. We appreciate the assistance with the costs there - thank you.

We look forward to the contract tomorrow and hope to have it signed by the end of the day.

Thanks gents!

Harry

[cid:image001.png@01DCC01F.F35CB2D0]

Andrew Harrison
Director | Drainage & Groundwork Contractors Ltd

[icon] 07624 202220 <http://tel:07624+202220>
[icon] info@DGC.im <http://mailto:info@DGC.im> [icon] [DGC.im Drainage & Groundworks Isle of Man, Site Safety & Excavation](#) [icon] 23 Circular Road, Douglas, IM1 1AF

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From: Andrew Harrison <harry@dgc.im<http://mailto:harry@dgc.im>>
Date: Saturday, 28 March 2026 at 10:02
To: David Curtis <dcurtis@dandara.com<http://mailto:dcurtis@dandara.com>>, Kalyan Chudasama

<kchudasama@dandara.com<http://mailto:kchudasama@dandara.com>> Cc: Ashur Aziz
<ash@dgc.im<http://mailto:ash@dgc.im>>, Commercials DGC
<commercials@dgc.im<http://mailto:commercials@dgc.im>> Subject: Re: Dandara Ballasalla Phase 4 RAMS (DGC)

Hi David,

Just wanted to clear up a few points before Monday.

Our insurance provides £5m Public Liability cover (£10m relates to Employers Liability), so the liability cap should be set at £5m. If £10m is required, we can look to increase this, but this would need to be reflected commercially within prelims.

We'll come back to you with a revised programme to reflect changes to date. You mentioned a strike in your email - I assume this refers to the Dandara gas strike on Friday 27th? Just to confirm, DGC have not had a service strike on site.

On termination, we would expect this to include payment for materials and reasonable demobilisation costs, with any deductions being properly evidenced. As it stands, if £30k of materials are ordered (but not yet on site), these are not clearly covered and deductions could be applied without a defined evidential basis. We're just looking to ensure this is clear and balanced in the wording.

Thanks David - hope you have a good weekend.

Harry

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Andrew Harrison
Director | Drainage & Groundwork Contractors Ltd

[icon] 07624 202220[http://tel:07624+202220](tel:07624+202220)
[icon] info@DGC.im<http://mailto:info@DGC.im> [icon] [DGC.imDrainage & Groundworks Isle of Man, Site Safety & Excavation](#) [icon] 23 Circular Road, Douglas, IM1 1AF

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From: Andrew Harrison <harry@dgc.im<http://mailto:harry@dgc.im>>

Date: Friday, 27 March 2026 at 16:40

To: David Curtis <dcurtis@dandara.com<http://mailto:dcurtis@dandara.com>>, Kalyan Chudasama
<kchudasama@dandara.com<http://mailto:kchudasama@dandara.com>> Cc: Ashur Aziz
<ash@dgc.im<http://mailto:ash@dgc.im>>

Subject: Re: Dandara Ballasalla Phase 4 RAMS (DGC)

Hi David,

Thanks for your email. Yes, we will have that organised and shared with you over the weekend 🙌

Cheers,

Harry

Sent from Outlook for Android[Outlook](#)

From: David Curtis <dcurtis@dandara.com<http://mailto:dcurtis@dandara.com>> Sent: Friday, March 27, 2026 4:37:15 PM

To: Andrew Harrison <harry@dgc.im<http://mailto:harry@dgc.im>>; Kalyan Chudasama <kchudasama@dandara.com<http://mailto:kchudasama@dandara.com>> Cc: Ashur Aziz <ash@dgc.im<http://mailto:ash@dgc.im>>

Subject: RE: Dandara Ballasalla Phase 4 RAMS (DGC)

Hi Harry

It will be Monday morning we get this over collated as I have been out of the office yesterday and most of today also

Notes below in red – could you issue your revised programme with mobilisation starting Thursday (yesterday) and pushing demobilisation to 17th June

Thanks

David

From: Andrew Harrison <harry@dgc.im<http://mailto:harry@dgc.im>>

Sent: 27 March 2026 10:31

To: David Curtis <dcurtis@dandara.com<http://mailto:dcurtis@dandara.com>>; Kalyan Chudasama <kchudasama@dandara.com<http://mailto:kchudasama@dandara.com>> Cc: Ashur Aziz <ash@dgc.im<http://mailto:ash@dgc.im>>

Subject: Re: Dandara Ballasalla Phase 4 RAMS (DGC)

Hi Gents,

Thanks for the updated contract. We've re-reviewed the latest draft against the agreed points. A number of the amendments have now been picked up, including the defects period and the inclusion of the scope document, so thank you for turning that around.

Before we proceed to signature, we just need the remaining agreed items reflected in the contract so that we are all working from the same position.

In summary, the following still need to be updated:

Liability cap

We are happy to align the liability cap to our insurance level of £5,000,000. Please include this within the subcontract. I believe you carry £10m cover so, as stated, will cap at this level.

Indemnities (Clauses 2, 4 and 19)

As discussed, these should be limited so that DGC is only liable to the extent of its negligence, breach of contract, or failure to comply with the specification. Agreed

Programme wording

Please update the contract to reflect a commencement date of 30 March 2026, with the programme expressed in working weeks (not calendar weeks) to properly account for bank holidays etc. Site mobilisation I believe was commenced Tuesday (reflected in your contract) but due to the strike I'm happy to push this to Thursday 26th as cabins etc were dropped off. Can you issue a revised programme to reflect this so we can insert into the contract.

Variations / dayworks

Where a Construction Change Event (CCE) is agreed and signed by both parties, this should constitute agreement for payment of the work carried out on that basis. As discussed, our instruction constitutes a variation, which can then be followed with the variation. As we agreed, I'm happy for you to use the example you have previously provided to

capture this on site as the basis for site request with knowledge this is not the agreed valuation of the instruction – simply an instruction

Adoptable roads / CBR / ground conditions

Given that the road construction is dependent on CBR results and ground conditions which are not known at tender stage, any changes required to the road make-up, excavation depth, backfill, stabilisation or associated works arising from CBR testing or site conditions will need to be treated as variations. – This goes without saying – we have currently measured it with fully capped road buildup in any case

Termination / set-off

As agreed, the termination provisions should include payment for work completed, materials and reasonable demobilisation costs, with any deductions limited to properly evidenced amounts. Clauses 17/18 deal with this

Bill of Quantities (Numbered Document 2)

Please include the full bills with all DGC notes, clarifications and qualifications as part of the contract documents. Will do

Once the above is reflected, we are happy to proceed to execution immediately and keep things moving. We look forward to getting this finalised today.

Thanks,

Harry

[cid:image001.png@01DCC01F.F35CB2D0]

Andrew Harrison
Director | Drainage & Groundwork Contractors Ltd

[icon] 07624 202220<http://tel:07624+202220>

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From: Andrew Harrison <harry@dgc.im<http://mailto:harry@dgc.im>>

Date: Wednesday, 25 March 2026 at 11:34

To: David Curtis <dcurtis@dandara.com<http://mailto:dcurtis@dandara.com>>